

Five Questions to Ask Before Your Community Approves a Data Center

A CITIZEN'S GUIDE
FOR COMMUNITY MEETINGS

How to use this: Bring it to your county commission, city council, or utility board meeting. Before your officials vote on a data center, ask them these five questions, and ask for the answers in writing.

For a century, communities shared the cost of the electric grid, and it was fair: a new factory brought jobs and decades of activity roughly in proportion to the power it used. A large AI data center breaks that math. One facility can draw **600 megawatts** or more, as much as a city of 200,000 uses on its heaviest day. When one customer can trigger billions in new investment, "who pays for the new capacity" is the whole question, and most officials are voting without asking it.

1 Does the data center pay for the power it demands?

If the pricing rules make the facility cover the capacity its demand triggers, residents are protected. If that cost spreads across everyone, households pay for power they never used. A few states have begun writing this into law, including Oregon's POWER Act in 2025 and Florida's SB 484 in 2026, and Pennsylvania regulators adopted a model large-load tariff in 2026. Ask whether your state has acted, and ask your officials to read the actual rules. A filing is not the same as protection.

2 Who reviews the price the utility pays its corporate sibling?

A utility does not always generate the power it sells. The company that bills customers and the one that generates the power are sometimes sister companies under one parent, and the price between them is set inside the corporate family. Federal regulators oversee wholesale contracts between affiliates, and some states also review what a utility books for affiliate purchases. A state rule on what the customer pays at the end may not reach that price. Ask who reviews it in your state.

3 Does the company pay even if it does not use everything it asked for?

This is called take-or-pay, and it obligates a large customer to pay for the infrastructure built to serve it whether or not it uses all of it. It is negotiable, and it has been negotiated in real settlements. Ask what the number is in your deal, and who has the authority to lower it.

4 What happens if the data center leaves?

The cost is set by the load on the day the deal is signed; the infrastructure lasts thirty to forty years. If a utility builds for a customer that later shrinks or relocates, the equipment stays and its cost spreads across everyone who remains. This is not a prediction that any project will leave. It is a question about who carries the risk if one does. Under existing cost-recovery rules, the default answer is the customers who remain.

5 What conditions is your community attaching before it approves?

State law may set the cost rules, but land use stays local. A county or city can require a project to fund its own grid and road upgrades and commit to enforceable terms before the vote. The strongest position is not a flat yes-or-no. **It is a yes, with conditions.**

Communities are already asking. In July 2026, Palm Beach County, Florida denied a data center expansion without prejudice. These projects are moving into nearly every state, and the questions are the same everywhere.

Dr. Mark R. McNees

Director, MS in Social and Sustainable Enterprises
Jim Moran College of Entrepreneurship, Florida State University

The state-by-state tracker, the sources behind every figure, and a reporter FAQ:

markmcnees.com/community

mmcnees@fsu.edu | 850.973.7687

Framework published in *Florida Politics*. Every source: markmcnees.com/community. Revised September 20, 2026.



SCAN FOR YOUR STATE'S STATUS